

Criminal Appeal No. 8461 of 2024

10.11.2024

Present :

Mr. Justice Md. Khairul Alam

Mr. Abdur Razzaque Raju, Advocate with
Mr. Md. Azharul Islam Sohel, Advocate
.....For the convict-appellant-petitioner
Ms. Shiuli Khanom, D.A.G
...For the State

This is an application for bail in a pending appeal.

The convict-appellant-petitioner filed the above mentioned appeal against the judgment and order of conviction and sentence dated 30.09.2024 passed by the learned Additional Sessions Judge, 2nd Court, Brahmanbaria in Sessions Case No. 200 of 2019 arising out of Akharua Police Station Case No. 34 dated 30.03.2018 corresponding to G.R. No. 108 of 2018 convicting the appellant under section 19(1) tabke 9 (Kha) of the Madak Drabbay Niontran Ain, 1990 and sentencing him to suffer rigorous imprisonment for 06 (six) years and also to pay a fine of taka 5,000/- (five thousand) in default to suffer simple imprisonment for 01 (one) months more.

Mr. Abdur Razzaque, the learned Advocate appearing for the convict appellant-petitioner has submitted that in

connection with this case, the convict appellant was arrested on 31.03.2018 and he was enlarged on bail on 24.09.2020 and he never misused the privilege of the bail. On the date of argument i.e. on 23.09.2024 he also taken to custody and since then he has been languishing in jail. Learned Advocate has further submitted the prosecution failed to prove the time, place and manner of the occurrence and therefore, there is every chance of acquittal of the appellant, but there is no chance of early hearing of the appeal. Accordingly, he has prayed for enlarging the appellant on bail.

Ms. Shiuli Khanom, the learned Deputy Attorney General for the respondent has opposed the prayer for bail of the appellant.

We have considered the submissions of both sides, perused the evidence and other materials on record.

Admittedly, this is an appeal of 2024. The appellant has been sentenced to suffer rigorous imprisonment for 06 (six) years with a fine. It has been alleged that no independent and impartial witness supported the prosecution story. During trial, the appellant was on bail and he never misused the privilege of bail. On the date of argument he was taken to custody and by now he has suffered about 02(two) years of

his sentence and there is no chance of early hearing of the appeal. In that view of the matter, the prayer for bail of the appellant is allowed.

Let the Convict-appellant **Md. Illu Miah alias Elu Miah, son of late Chan Miah** be enlarged on bail till the disposal of the appeal after furnishing bail bond to the satisfaction of the learned Additional Sessions Judge, 2nd Court, Brahmanbaria.

Kashem, B.O